

CHAPTER 31.

An Act to authorise the setting up of Clearing Offices for collecting and dealing with certain debts; to authorise the imposition of restrictions on imports from certain foreign countries, and for purposes connected with the matters aforesaid. [28th June 1934.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power of
Treasury in
certain
circum-
stances to
set up
Clearing
Offices.

1.—(1) If it appears to the Treasury that in the case of any foreign country payments or transfers to persons ordinarily resident or ordinarily carrying on business in the United Kingdom are subjected to restrictions, or are prohibited or have been discontinued, the Treasury, may by order set up an office (in this Act referred to as the "Clearing Office") having such functions as are hereafter in this section mentioned with respect to the collection of debts to which the order applies and the application of the proceeds of such collection.

(2) An order made under this section with respect to any foreign country may be made so as to apply to all debts due, or to become due, in respect of goods, or any class or description of goods, grown, produced or manufactured in, or consigned from, that foreign country and imported into the United Kingdom, or due or to become due to, or for the benefit of, persons ordinarily resident or ordinarily carrying on business in that foreign country, or to any such debts as aforesaid.

(3) While an order made under this section is in force with respect to any foreign country, every person from whom any debt to which the order applies is or becomes due shall, subject to such exceptions and conditions, and at such time and in such manner, as may be specified in the order, pay that debt, or such part thereof as may be so specified, to the Clearing Office and not otherwise, and the debt, or the specified part

thereof, shall be recoverable by the Clearing Office accordingly, and their receipt for any sum paid to them under this section in respect of a debt shall, so far as regards the amount so paid, be a good discharge to the person from whom the debt was due.

(4) For the purpose of facilitating the collection by the Clearing Office of debts to which an order made under this section applies, being debts due or to become due in respect of goods imported into the United Kingdom, the order may require that, subject to any exceptions for which the order may provide, a person importing into the United Kingdom goods grown, produced or manufactured in, or consigned from, the country to which the order relates shall, on importation either—

- (a) produce to the Commissioners a certificate from the Clearing Office that the debt due or to become due in respect of those goods, or the specified part of that debt, has been paid to the Clearing Office, or that security of a nature and in a form satisfactory to the Clearing Office has been given to that office, or that the Clearing Office claim no payment in respect of the goods; or
- (b) pay to the Commissioners for the credit of the Clearing Office a sum equal to the value of the goods, or to such proportion of their value as may be specified in the order;

but, where any payment made under this subsection in respect of goods exceeds the debt due or to become due in respect of those goods, the excess shall be repaid by the Clearing Office.

The provisions of the Customs Consolidation Act, 1876, and any Act amending or extending that Act, shall apply in relation to any such goods as aforesaid, and to any payment to be made to the Commissioners under this subsection in respect thereof, as if that payment were a payment in respect of a duty of customs with which the goods were chargeable, and for the purposes of this subsection, the value of any imported goods shall be ascertained in the manner in which the value of imported goods is by law required to be ascertained for the purposes of any enactment whereunder a duty of customs is chargeable on goods by reference to their value.

39 & 40 Vict.
c. 36.

(5) A person importing goods into the United Kingdom who has paid to the Clearing Office any sum in respect of those goods, shall have the like rights against any person by whom documents of title relating to those goods are held as if he had made the like payment to that person.

(6) The Clearing Office shall, after making any necessary adjustments in respect of overpayments made to them, apply any sums received by them by virtue of this section and of any order made thereunder

- (i) in discharging, either directly or through agents appointed by them, and at such time, in such manner and in such order of priority, but subject to such provisions with respect to a reserve fund, as may be specified in an order under this section,

(a) debts due from persons in the foreign country to which the order relates to persons ordinarily resident or ordinarily carrying on business in the United Kingdom, or to British subjects wherever resident, or to corporations incorporated by or under the laws of the United Kingdom, or of a country forming part of the British Empire as defined in the Import Duties Act, 1932, or to persons who are afforded His Majesty's protection and ordinarily reside, or ordinarily carry on business, in such a country; and

(b) debts due to any person in respect of such securities as may be specified in the order and which were on a date to be so specified in the beneficial ownership of any such person or corporation as aforesaid; or

- (ii) in such manner as may be provided for in any agreement entered into between His Majesty's Government in the United Kingdom and the government of any foreign country to which the order relates.

(7) Anything required or authorised by or under this Act to be done by or to the Clearing Office may be done by or to any person authorised in that behalf • by or under an order made under this section.

2.—(1) If it appears to the Board of Trade that in any foreign country quantitative restrictions are imposed on the importation into that foreign country of goods of any class or description grown, produced or manufactured in or consigned from a country to which this section applies, and those restrictions are, in the opinion of the Board, discriminatory against or specially detrimental to a country to which this section applies, the Board may make an order prohibiting or restricting for any such period as may be specified in the order the importation into the United Kingdom of goods of any such class or description as may be so specified, being goods grown, produced or manufactured in or consigned from that foreign country.

Power of Board of Trade in certain circumstances to restrict imports from a foreign country.

(2) The countries to which this section applies are the United Kingdom, the Channel Islands, Newfoundland, the Colonies, the British Protectorates and Protected States, and any territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by His Majesty's Government in the United Kingdom.

(3) Goods to which an order made under this section applies shall, if imported without such licence as may be required by the order or otherwise in contravention of the terms of the order, be deemed to be goods, the importation of which is prohibited by section forty-two of the Customs Consolidation Act, 1876, and the provisions of that Act and of any Act amending or extending it shall apply accordingly.

(4) Anything authorised under this Act to be done by the Board of Trade may be done by the President of the Board, or in his absence by a Secretary of State.

3.—(1) An order made under either of the foregoing sections may contain such provisions as appear to the Treasury or, as the case may be, to the Board of Trade, to be necessary or expedient for securing the due operation and enforcement of this Act and of the Order and in particular, but without prejudice to the generality of the foregoing words, may contain provisions with respect to any of the matters or for any of the purposes specified in the Schedule to this Act.

Contents of Orders.

(2) Any such order may at any time be varied or revoked by a subsequent order made under the same section.

Orders to
be laid
before Par-
liament.

4.—(1) Every order made under this Act shall be laid before both Houses of Parliament as soon as may be after it is made and shall cease to have effect on the expiration of a period of twenty-eight days from the date on which it was made unless, at some time before the expiration of that period, it has been approved by a resolution passed by each House of Parliament, but without prejudice to anything previously done under the order or to the making of a new order.

In reckoning any such period of twenty-eight days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses of Parliament are adjourned for more than four days.

56 & 57 Vict.
c. 66.

(2) A rule or regulation contained in an order made under this Act by the Treasury shall not be deemed to be a statutory rule within the meaning of section one of the Rules Publication Act, 1893.

Expenses.

5.—(1) Any expenses incurred by the Treasury or the Board of Trade in carrying this Act into execution and the expenses of any Clearing Office set up under this Act, to such an amount as may be approved by the Treasury, shall be defrayed out of moneys provided by Parliament.

(2) There may be charged by the Board of Trade in respect of an import licence issued under an order made under this Act such reasonable fee, not exceeding five pounds, as the Board think fit, and by the Clearing Office in respect of moneys distributed by them in accordance with the provisions of any such order such reasonable commission, not exceeding two per cent. of any sum so distributed, as the Treasury think fit.

(3) Any receipts arising under this section shall be paid into the Exchequer.

Interpre-
tation.

6.—(1) This Act applies to debts due from the government of, or any public authority in, a country as it applies to debts due from persons in that country.

(2) In this Act the expression "person" includes, as respects any country, a body corporate.

(3) For the purposes of this Act references to goods produced in the United Kingdom or goods produced in any other country shall be deemed to include fish of

British taking, or fish of that country's taking, as the case may be.

(4) In this Act the expression "the Commissioners" means the Commissioners of Customs and Excise, and this Act shall be taken to be an Act relating to customs within the meaning of the Customs Consolidation Act, 1876.

7.—(1) This Act may be cited as the Debts Clearing Offices and Import Restrictions Act, 1934.

Short title
and dura-
tion.

(2) This Act shall continue in force until the thirtieth day of June, nineteen hundred and thirty-six, and no longer :

Provided that the expiry of this Act shall not affect the previous operation thereof or of any order made thereunder, or any obligation or liability previously incurred under this Act or any such order, or the taking of any steps, or the institution or carrying on of any proceedings, to enforce any such obligation or liability.

SCHEDULE.

PARTICULAR PROVISIONS WHICH MAY BE INCLUDED IN AN ORDER MADE UNDER THIS ACT. Section 3.

Provisions—

- (i) with respect to the circumstances in which goods partly manufactured in any country are to be taken to be manufactured therein ;
- (ii) with respect to the evidence to be required and the presumption, in the absence of such evidence, as to the country in which goods were grown, produced or manufactured, or from which they were consigned ;
- (iii) with respect to the mode of determining any dispute as to whether goods are goods to which an order applies, or as to the value of any such goods ;
- (iv) for exempting, either absolutely or conditionally, from the operation of the order goods imported for re-exportation after transit through the United Kingdom, or by way of trans-shipment, or after undergoing in the United Kingdom any process which will not change the form or character of the goods ;

- (v) for providing for the punishment of any breach of the order, or any failure to comply with the section under which it is made; so however that such punishment shall not in the case of a summary conviction exceed a fine of one hundred pounds or imprisonment for three months or both such fine and imprisonment, or for a second or any subsequent conviction a fine of five hundred pounds or imprisonment for six months or both such fine and imprisonment;
- (vi) for adapting or modifying provisions of any enactment relating to customs, and in force at the passing of this Act, for the purposes of the application thereof by this Act or by the order.

CHAPTER 32.

An Act to grant certain duties of Customs and Inland Revenue (including Excise), to alter other duties, and to amend the law relating to Customs and Inland Revenue (including Excise) and the National Debt, and to make further provision in connection with Finance.

[12th July 1934.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects the Commons of the United Kingdom in Parliament assembled, towards raising the necessary supplies to defray Your Majesty's public expenses, and making an addition to the public revenue, have freely and voluntarily resolved to give and grant unto Your Majesty the several duties hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

CUSTOMS AND EXCISE.

1.—(1) Subject as hereafter provided, the provisions of section eight of the Finance Act, 1925, and of section four of and the Second Schedule to the Finance Act,

Alteration
of customs
duties on
colonial